

Tentative Rulings for August 17, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403964	ACUNA vs FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The motion is granted in part, denied in part.

Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code §1794(d).)

On December 16, 2025, Ford served Plaintiffs an Offer to Compromise pursuant to the CCP § 998 for the sum of \$53,256.24, which was accepted by Plaintiff. (Plaint. Ex. A, ¶ 1.) The Settlement provides that Plaintiffs are the prevailing party with the right to petition the Court for an award of attorneys' fees and costs. (Id at ¶ 2.)

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (*Id.* at 998.) The trial court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case, including the complexity of the case, procedural demands, skill exhibited, and results achieved, the amount of actual time expended and the monetary charge being made for the time expended are reasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.) If the time expended or monetary charge is not reasonable, the court should reduce the amount. (*Ibid.*)

Plaintiffs claim a lodestar total of \$20,651.00 based on 56 hours.

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.) In determining the value of the legal service, courts consider several factors, including, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (*PLCM Group, Inc., supra*, 22 Cal. 4th at 1096.)

Plaintiff requests hourly rates ranging from \$395 for a law clerk to \$625 for partner. Some of these rates appear somewhat high for Riverside County. Defendants argue the

rates should be reduced to \$400 per hour for partners, \$325 per hour for senior attorneys, and \$300 per hour for associates. These rates are lower than rates typically awarded for lemon law actions. Based on the Court's experience with similar cases, and reflecting the experience and skill of counsel and contingency risk:

Name	Year licensed	Billed rate	Reduced rate	No. of hours	Total fee after reduction
Kirnos	2009	\$550	\$550	.9	\$495
Kirnos	2009	\$600	\$550	.4	\$220
Lopez	2018	\$450	\$425	2.4	\$1,020
Lopez	2018	\$400	\$400	1	\$400
Meagle	2019	\$400	\$400	11.2	\$4,480
C. Swanson	2011	\$575	\$550	5.4	\$2,970
E. Swanson	Of counsel	\$500	\$500	4.6	\$2,300
Cutler	2009	\$550	\$550	1.2	\$660
Smith	2001	\$626	\$550	1.2	\$660
Collazo	Law clerk	\$295	\$295	15.8	\$4,661
Folia	Paralegal	\$250	\$250	5.3	\$1,325
Total				56	\$19,191

Plaintiffs claim counsel billed 56 hours on this case. Counsel produced extensive billing records. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in the trial court forfeits the claim on appeal." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) Defendants argue that fee award should be reduced by \$5,350.00 due to block billing. "Block billing occurs when 'a block of time [is assigned] to multiple tasks rather than itemizing the time spent on each task.'" (*Mountjoy v. Bank of America, N.A.* (2016) 245 Cal. App. 4th 266, 279.) It is true that several billing entries include more than one task. However, the tasks appear to be related and the time incurred is reasonable for the combination of tasks. For example, one disputed entry includes, "Received email from opposing counsel offering dates for PMQ in 5 months, reviewed Def's objections to NOD (37 pages), email to Ford team re M&C and MTC." These tasks appear to be related to the deposition meet and confer. The .30 hour requested is reasonable. Moreover, block billing is generally disfavored where apportionment of fees is an issue, which is not a concern in the present case. (See *Bell v. Vista Unified School Dist.* (2000) 82 Cal.App.4th 672, 689.) The objections to the allegedly block-billed time entries are overruled.

Next, Defendant asserts certain “vague” entries totaling 2.3 hours, \$916.50 should be stricken. However, the disputed items appear to be sufficiently descriptive. For example, Defendant objects to entries stating, “Reviewed Defendant’s Document Production to Determine Compliance” and “Prepare [Vehicle Inspection] results.” These entries appear clearly describe the tasks. The only exception is an entry on 11/26/2025 stating only, “Review Documents.” This is somewhat vague. As such, the \$500 billed by E. Swanson for this entry is stricken.

Defendants next object to three allegedly duplicative billing entries for: drafting IDC statement (.8 hours), reviewing IDC statement (.4 hours) and preparing for IDC (.4 hours). These items are not duplicative since drafting an IDC statement and reviewing Defendants’ IDC statement involve different tasks.

Defendants ask that \$8700.50 be stricken from the fee award as excessive due to the use of standardized templates for pleadings, discovery, motions and other documents. Based on the Court’s experience with lemon law cases, it is likely that templates were used. However, this is reflected in the hours incurred. Plaintiffs incurred 1.2 hours in reviewing FMC’s opposition to Plaintiff’s discovery motion and to draft the reply. Had these documents been new, the hours incurred likely would have been greater. Defendants have not provided any comparison based on their own billing records or other evidence to establish the amount requested by Plaintiffs is excessive. These entries are not stricken.

Defendant argues \$2,185 for review of the Opposition to the present fee motion and drafting of the Reply are improper because they were not actually incurred prior to the filing of the Motion. A prevailing lemon law plaintiff may recover fees incurred in the preparation of a fee motion if reasonably spent. (*McKenzie v. Ford Motor Co.* (2015) 238 Cal. App. 4th 695, 703.) While the fees for the review of the opposition and preparation of the reply had not yet been incurred at the time the Motion was filed and would have been stricken had the Motion been unopposed, in this case, Defendant filed an Opposition, which required a response. In support of the Reply, Chris Swanson states he spent 1.1 hours reviewing the Opposition and 1.4 hours drafting the Reply. At the reduced billing rate of \$550/hour, the total for the new fees is \$1,375. Accordingly, the lodestar is reduced by \$810.

Based on the above, the lodestar total is reduced to \$18,610.00, reflecting the reduced billing rates and stricken fees for the document review and fee motion.

Plaintiffs request a multiplier of 1.2. The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery.” (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) A contingent fee is generally higher than a fee for the same legal services paid as they are performed to compensate for the loan of those services and

risk of loss. (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1132.) “However, although taking a case on a contingent fee basis may support an award of a multiplier, it does not compel, it.” (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal. App. 4th 1179, 1188.)

The request for the multiplier is based on the contingency risk and complexity of the case and skill of counsel. However, the contingency risk was reduced due to the fee-shifting provision of the Song Beverly Act. Moreover, the contingency risk, as well as the skill and experience of counsel, was accounted for in the billing rates. Thus, adding an enhancement based on the same factors constitutes double counting. (*Ketchum v. Moses* (2000) 24 Cal. 4th 1122, 1142.) This case is a simple, routine lemon law case with little complexity. **The request for multiplier is denied.**

“Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civil Code §1794(d).) The additional term “expenses” was included in this section to cover items that would not otherwise be included in the detailed statutory definition of “costs” under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

“If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs.” (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) The prevailing buyer bears the burden of showing that costs or expenses were (1) reasonably necessary to the conduct of litigation and (2) reasonable in amount. (*Ibid.*)

On May 15, 2026, Plaintiff filed the Memorandum of Costs seeking a total of \$5,778.98 in costs. Defendants do not challenge any of the items on the MOC. Nor have Defendants filed a motion to tax costs. Because Defendants have the burden of showing that any items of costs are not reasonable, which they have not done, **the request for costs in the amount of \$5,778.98 is granted in whole.**

Moving party is ordered to submit a proposed order consistent with is ruling by no later than August 17, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600381	PALMER vs WEATHERS	MOTION TO SET ASIDE DEFAULT ON COMPLAINT BY DEFENDANT TOMMY LEROY WEATHERS SR.

Tentative Ruling:

Plaintiff's request for judicial notice to documents already filed in this action is denied as it is not necessary to do so when already filed in the same action. The request for judicial notice of documents in case No. CVRI2403534 and CDCR records for Tommy Leroy Weathers is denied as not relevant here.

The motion is granted under Code of Civil Procedure section 473, subdivision (b).

The proposed Answer must be filed within ten (10) days of this Court's order.

The court sets a Case Management Conference on September 30, 2026, at 8:30 a.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600381	PALMER vs WEATHERS	MOTION TO SET ASIDE DEFAULT ON COMPLAINT BY DEFENDANT SHAWN WILLIAMS

Tentative Ruling:

Plaintiff's request for judicial notice to documents already filed in this action is denied as it is not necessary to do so when already filed in the same action. The request for judicial notice of documents in case No. CVRI2403534 and CDCR records for Tommy Leroy Weathers is denied as not relevant here.

The application for relief "shall be accompanied by a copy of the answer or other pleading proposed to be filed... otherwise the application shall not be granted." (Code Civ. Proc., § 473, subd. (b).) This requirement has not been met.

The motion is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600449	ALCARZAR vs SAN JACINTO UNIFIED SCHOOL DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

The Court orders Defendant to meet and confer in person, or via phone or videoconference with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer and motion to strike. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and motion to strike and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall, 10 days before the continued hearing date, do one of the following: (1) vacate the hearing on the demurrer, and file an Answer; (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means by which the parties met and conferred and identify the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a).)

The hearing is continued to September 9, 2026, at 8:30 a.m.